

Functional Description of Legal Maxims

Legal maxims are established principles of law, often expressed in Latin, that serve as foundational truths or guiding rules within a legal system, particularly in common law. They are not specific laws themselves but function as concise statements of fundamental legal concepts and reasoning.

Functional Purpose of Legal Maxims:

Legal maxims serve several key functional purposes:

1. **Summarizing Complex Concepts:** They provide a shorthand way to refer to broad or intricate legal principles, making legal discourse more efficient.
2. **Guiding Judicial Reasoning:** Judges often refer to maxims to support their legal reasoning and justify their decisions, demonstrating that the ruling is based on established principles.
3. **Promoting Consistency:** By invoking shared, fundamental principles, maxims contribute to consistency in legal interpretation and application across different cases and courts.
4. **Educating and Learning:** Maxims are essential tools for learning and understanding the core tenets of law.
5. **Bridging Historical and Modern Law:** Many maxims have ancient origins but remain relevant today, connecting contemporary legal practice to historical legal traditions.
6. **Filling Gaps and Resolving Ambiguities:** In areas where specific statutes or precedents may be unclear or absent, maxims can provide guidance based on underlying legal philosophy and common sense principles.

Here are significant legal maxims and their functional descriptions:

- **A Fortiori:** "From stronger [reason]."
 - **Functional Description:** This maxim is used in legal reasoning to argue that if a certain conclusion is true in a less compelling situation, it must be even more true in a more compelling one. It functions as a tool of logical inference to extend a rule or principle to a situation not explicitly covered.
- **A Priori:** "From the former."
 - **Functional Description:** This describes reasoning that proceeds from cause to effect, or is based on theoretical deduction rather than empirical observation. In law, it might function in arguments based on established legal principles or presumptions rather than specific facts of a case.
- **Ab Initio:** "From the beginning."
 - **Functional Description:** This term functions to describe something that is void

or invalid from the moment it was created or came into existence (e.g., a contract illegal *ab initio*).

- Ad Hoc: "For this [purpose]."
 - Functional Description: This describes something created or done for a specific, immediate purpose rather than for general or long-term application (e.g., an *ad hoc* committee, an *ad hoc* ruling). It functions to denote temporary or situation-specific arrangements.
- Ad Hominem: "To the person."
 - Functional Description: In legal argument, this describes an attack on an opponent's character or motives rather than addressing the substance of their argument. It functions as a rhetorical device, often considered a fallacious one, that attempts to discredit an argument by discrediting the person making it.
- Ad Infinitum: "To infinity."
 - Functional Description: This term functions to describe something that continues without limit or end.
- Ad Valorem: "According to value."
 - Functional Description: This term functions to describe a tax or duty assessed based on the value of an item or property, rather than on its quantity or other characteristics.
- Affidavit: "He has sworn."
 - Functional Description: This functions as a formal written statement of fact voluntarily made by an affiant under an oath or affirmation administered by a person authorized to do so by law. It serves as sworn evidence in legal proceedings.
- Alter Ego: "Another self."
 - Functional Description: In corporate law, this concept functions to justify disregarding the separate legal personality of a corporation when it is used as a mere extension or tool of an individual or other entity, often to prevent fraud or injustice.
- Amicus Curiae: "Friend of the court."
 - Functional Description: This functions as a role for a party who is not directly involved in a case but is permitted to assist the court by offering information, expertise, or insight relevant to the issues before the court.
- Animus Nocendi: "Intention to harm."
 - Functional Description: This term functions to describe the subjective mental state of intending to cause harm, relevant in determining liability for intentional torts or criminal offenses.
- Audi Alteram Partem: "Hear the other side."

- Functional Description: This is a fundamental principle of Due Process and natural justice. It functions to ensure fairness in any proceeding by requiring that all parties involved have the opportunity to present their case and respond to opposing arguments before a decision is made.
- Bona Fide: "In good faith."
 - Functional Description: This term functions to describe actions or intentions characterized by honesty, sincerity, and lack of intent to deceive or defraud. It is a standard of conduct required in many legal contexts.
- Bona Vacantia: "Vacant goods."
 - Functional Description: This term functions to describe property or goods that are ownerless, which typically then pass to the state or Crown.
- Casus Belli: "An act or event that provokes a war."
 - Functional Description: This term functions in international law and diplomacy to describe an act or situation that is considered a justification or cause for engaging in war.
- Caveat Actor: "Let the doer beware."
 - Functional Description: This maxim functions as a cautionary principle, similar to *caveat emptor*, but applied to the person taking an action, implying they should be aware of the potential risks or consequences of their conduct.
- Caveat Emptor: "Buyer beware."
 - Functional Description: This maxim functions as a principle in contract law, particularly historically, placing the responsibility on the buyer to inspect goods and satisfy themselves of their quality and suitability before purchase.
- Certiorari: "To be informed."
 - Functional Description: This functions as a writ from a higher court to a lower court, ordering that the record of a case be sent up for review. It is a primary mechanism by which supreme courts select cases to hear.
- Cessante Ratione Legis, Cessat Ipsa Lex: "When the reason for a law ceases, the law itself ceases."
 - Functional Description: This maxim functions as a rule of statutory interpretation and legal evolution. It suggests that if the underlying purpose or justification for a law no longer exists due to changed circumstances, the law's application or validity may be questioned.
- Compos Mentis: "Of sound mind."
 - Functional Description: This term functions to describe a person who has the mental capacity to understand legal proceedings, enter into contracts, or make a will. It is relevant to legal capacity and responsibility.
- Consensus Ad Idem: "Agreement to the same thing."
 - Functional Description: This functions as a core requirement for the formation

of a valid contract, meaning that the parties must have a mutual understanding and agreement on the essential terms of the contract.

- **Contra Bonos Mores:** "Against good morals."
 - **Functional Description:** This phrase functions to describe conduct or agreements that are considered contrary to the accepted moral standards of the community, and which may therefore be deemed unenforceable or illegal.
- **Corpus Delicti:** "Body of the crime."
 - **Functional Description:** This term functions in criminal law to refer to the facts or evidence that prove that a crime has actually been committed (e.g., evidence of a death in a murder case), independent of proving who committed it.
- **De Bonis Non Administravis:** "Of goods not administered."
 - **Functional Description:** This term functions in probate law to refer to the portion of a deceased person's estate that has not been administered by a previous executor or administrator.
- **De Facto:** "In fact."
 - **Functional Description:** This term functions to describe a state of affairs that exists in reality, even if it is not legally sanctioned or recognized (De Jure).
- **De Jure:** "By law."
 - **Functional Description:** This term functions to describe a state of affairs that exists by right or according to the law, whether or not it exists in reality (De Facto).
- **De Novo:** "Anew."
 - **Functional Description:** This term functions to describe a new trial or hearing in which the case is heard as if it had not been heard before, with the court considering the evidence and issues without being bound by the prior decision.
- **Dictum (Plural: Dicta):** "Something said by the way."
 - **Functional Description:** This functions to describe a remark or observation made by a judge in an opinion that is not necessary to the decision of the case. *Obiter Dictum* is not binding precedent (Stare Decisis).
- **Doli Incapax:** "Incapable of crime."
 - **Functional Description:** This functions as a legal presumption, particularly regarding young children, that they lack the capacity to form the necessary criminal intent (Mens Rea) and therefore cannot be held criminally responsible.
- **Ejusdem Generis:** "Of the same kind."
 - **Functional Description:** This is a rule of Interpretation & Construction that functions to limit the scope of general words that follow a list of specific items

to include only things of the same kind as those listed.

- **Erga Omnes:** "Towards all."
 - **Functional Description:** This describes obligations or rights that are owed or apply to everyone, rather than just specific parties. It functions to define the universal scope of certain legal duties or entitlements, particularly in international law or regarding fundamental rights.
- **Et Al. (Et Alii):** "And others."
 - **Functional Description:** This abbreviation functions as a shorthand in case names or lists to indicate that there are other parties involved who are not specifically named.
- **Et Cetera (Etc.):** "And other things."
 - **Functional Description:** This functions as a general placeholder indicating that a list continues with other similar items.
- **Ex Gratia:** "By favor."
 - **Functional Description:** This term functions to describe something done voluntarily and out of kindness or goodwill, rather than because of a legal obligation.
- **Ex Parte:** "From one party."
 - **Functional Description:** This functions to describe a legal proceeding, motion, or communication conducted by or for one party only, without the participation or often the knowledge of the other party. Such communications with the court are generally prohibited (Rule 3.5 Impartiality and Decorum).
- **Ex Post Facto:** "From a thing done afterward."
 - **Functional Description:** This functions as a principle of legality, primarily in criminal law, prohibiting retroactive laws that criminalize actions that were legal when done, or that increase the punishment for a crime after it was committed. It ensures predictability and fairness in the application of criminal statutes.
- **Expressio Unius Est Exclusio Alterius:** "The expression of one thing is the exclusion of the other."
 - **Functional Description:** This is a rule of Interpretation & Construction that functions as a rule of negative inference. If a legal text specifically mentions certain items or situations, it is presumed that items or situations not mentioned are intentionally excluded.
- **Fiat Justitia Ruat Caelum:** "Let justice be done though the heavens fall."
 - **Functional Description:** This maxim functions as a powerful statement emphasizing the paramount importance of achieving justice, even if it leads to severe or inconvenient consequences. It serves as an aspirational guide for judges and legal practitioners to prioritize just outcomes.

- Forum Conveniens: "Convenient forum."
 - Functional Description: This principle functions in jurisdictional law to allow a court to hear a case if it is the most appropriate and convenient location for the litigation, considering factors like where the evidence and witnesses are located.
- Forum Non Conveniens: "Inconvenient forum."
 - Functional Description: This doctrine functions to allow a court to decline to hear a case, even if it has jurisdiction, if there is a more appropriate or convenient forum elsewhere, preventing vexatious or oppressive litigation in an unsuitable location.
- Habeas Corpus: "You shall have the body."
 - Functional Description: This functions as a fundamental writ challenging the legality of a person's detention. It requires the person holding the detainee to bring them before a court to determine if the detention is lawful, ensuring protection against arbitrary imprisonment.
- Id Est (i.e.): "That is."
 - Functional Description: This phrase functions as a linguistic tool to introduce a clarification or explanation of a preceding statement.
- Ignorantia Juris Non Excusat: "Ignorance of the law does not excuse."
 - Functional Description: This fundamental principle functions to ensure that individuals are held accountable for their actions under the law, regardless of whether they were aware of the relevant legal rules. It is necessary for the practical enforcement of laws and encourages individuals to know their legal obligations.
- In Absentia: "In absence."
 - Functional Description: This term functions to describe legal proceedings conducted without the presence of one of the parties involved.
- In Camera: "In chambers."
 - Functional Description: This term functions to describe a legal hearing or discussion held in private, typically in a judge's office, rather than in the public courtroom.
- In Flagrante Delicto: "In blazing offense."
 - Functional Description: This term functions to describe a person caught in the actual commission of a crime.
- In Limine: "At the threshold."
 - Functional Description: This term functions to describe a motion or discussion that takes place at the very beginning of a trial, often to determine the admissibility of evidence or other preliminary matters.
- In Loco Parentis: "In the place of a parent."

- Functional Description: This term functions to describe a person or entity that assumes the legal responsibilities and duties of a parent for a minor, even though they are not the child's biological or adoptive parent.
- In Personam: "Against a person."
 - Functional Description: This term functions to describe a legal action or judgment directed against a specific individual, asserting the court's power over that person.
- In Re: "In the matter of."
 - Functional Description: This phrase functions in case titles to indicate that the case involves a specific thing or status (like a bankruptcy estate or a probate matter) rather than a direct dispute between two opposing parties.
- In Rem: "Against a thing."
 - Functional Description: This term functions to describe a legal action or judgment directed against property, determining the rights of all persons with respect to that property.
- In Situ: "In the original place."
 - Functional Description: This term functions to describe something located or remaining in its original position or location.
- In Toto: "In total" or "entirely."
 - Functional Description: This phrase functions to indicate that something is considered or applied completely or as a whole.
- Inter Alia: "Among other things."
 - Functional Description: This phrase functions as a linguistic tool to indicate that the item mentioned is one of several items in a list or group, without listing all of them.
- Inter Vivos: "Between the living."
 - Functional Description: This term functions in property and trusts law to describe transfers or gifts made between living persons, as opposed to transfers upon death.
- Intra Vires: "Within the powers."
 - Functional Description: This term functions to describe actions taken by an individual or entity (like a corporation or government body) that are within the scope of their legal authority.
- Ipso Facto: "By the fact itself."
 - Functional Description: This phrase functions to indicate that a certain result or consequence occurs automatically by the very nature of a deed or fact, without any further action required.
- Jus Cogens: "Compelling law."
 - Functional Description: In international law, this functions to identify

fundamental, overriding principles that cannot be violated by treaties or state practice. It establishes a hierarchy of international norms, ensuring certain core principles (like prohibitions against genocide or torture) have universal and undeniable force.

- Lex Domicilii: "Law of the domicile."
 - Functional Description: This term functions in conflict of laws to refer to the law of the jurisdiction where a person is legally domiciled, which is often relevant in matters of personal status, inheritance, or family law.
- Lex Fori: "Law of the forum."
 - Functional Description: This term functions in conflict of laws to refer to the law of the jurisdiction in which a lawsuit is filed or heard. Procedural rules are almost always governed by the *lex fori*.
- Lex Loci Delicti Commissi: "Law of the place where the tort was committed."
 - Functional Description: This functions as a rule in conflict of laws to determine which jurisdiction's tort law applies to a case involving a tort that occurred in a different jurisdiction than where the case is being heard.
- Lex Posterior Derogat Priori: "A later law repeals an earlier one."
 - Functional Description: This is a rule of Interpretation & Construction that functions to resolve conflicts between two laws enacted at different times, giving precedence to the more recently enacted law as the latest expression of intent.
- Lex Specialis Derogat Legi Generali: "Specific law overrules general law."
 - Functional Description: This is a rule of Interpretation & Construction that functions to resolve conflicts between a specific legal provision and a more general one, giving precedence to the specific rule as more precisely addressing the situation at hand.
- Lis Pendens: "Suit pending."
 - Functional Description: This term functions as a notice that a lawsuit has been filed that may affect title to real property, warning potential buyers or lenders that the property is subject to litigation.
- Locus Standi: "Place of standing."
 - Functional Description: This functions as the requirement that a party have a sufficient connection to and harm from a law or action to be able to bring a lawsuit or appear in court. It determines who has the right to initiate legal action.
- Mala Fide: "In bad faith."
 - Functional Description: This term functions to describe actions or intentions characterized by dishonesty, deceit, or intent to defraud. It is the opposite of Bona Fide and often has negative legal consequences.

- Mandamus: "We command."
 - Functional Description: This functions as a writ from a higher court ordering a government official or lower court to perform a specific ministerial duty that they are legally required to perform.
- Mens Rea: "Guilty mind."
 - Functional Description: This functions as the mental state or intent that a defendant must have had at the time a crime was committed to be held criminally liable. It is a core element of most crimes.
- Modus Operandi (M.O.): "Method of operating."
 - Functional Description: This term functions to describe a person's characteristic way of doing things, often used in criminal investigations to link crimes to a particular offender.
- Modus Vivendi: "Way of living."
 - Functional Description: This term functions to describe a practical arrangement or compromise that allows parties with conflicting interests to coexist peacefully, at least temporarily.
- Mutatis Mutandis: "The necessary changes having been made."
 - Functional Description: This phrase functions as a linguistic tool to indicate that a comparison is being made between two situations, and that the necessary alterations have been accounted for to make the comparison valid.
- Nemo Judex In Causa Sua: "No one should be a judge in his own case."
 - Functional Description: This is a core principle of natural justice and judicial ethics, functioning to prevent bias in legal proceedings. It requires that decision-makers be impartial and have no personal interest in the outcome of a case they are adjudicating.
- Nolo Contendere: "I do not wish to contend."
 - Functional Description: This functions as a plea in criminal court where the defendant does not admit guilt but also does not dispute the charges, resulting in a conviction without a trial.
- Non Compos Mentis: "Not of sound mind."
 - Functional Description: This term functions to describe a person who lacks the mental capacity to understand legal proceedings or manage their own affairs, relevant to legal capacity and defenses.
- Noscitur a Sociis: "It is known by its associates."
 - Functional Description: This is a rule of Interpretation & Construction that functions to determine the meaning of an ambiguous word by examining the words with which it is associated in the text, relying on context.
- Obiter Dictum: "Something said by the way."
 - Functional Description: This functions to describe a remark or observation

made by a judge in an opinion that is not necessary to the decision of the case. *Obiter Dictum* is not binding precedent (Stare Decisis).

- Pacta Sunt Servanda: "Agreements must be kept."
 - Functional Description: This is a foundational principle in contract law and international law. It functions to ensure the enforceability of agreements, providing stability and reliability in transactions and treaties by requiring parties to fulfill their obligations.
- Pari Passu: "On equal footing."
 - Functional Description: This phrase functions to describe situations where parties or things are treated equally or proportionally, without preference or priority.
- Per Capita: "By head."
 - Functional Description: This term functions in inheritance law to describe the distribution of an estate where each beneficiary receives an equal share.
- Per Curiam: "By the court."
 - Functional Description: This term functions to describe a court opinion or judgment delivered by the court as a whole, rather than being attributed to a specific judge.
- Per Stirpes: "By roots."
 - Functional Description: This term functions in inheritance law to describe the distribution of an estate where shares pass to the descendants of a deceased beneficiary, divided equally among that generation.
- Pendente Lite: "During litigation."
 - Functional Description: This term functions to describe court orders or actions that are in effect or taken while a lawsuit is ongoing.
- Prima Facie: "On the face of it."
 - Functional Description: This term functions to describe evidence that is sufficient to establish a fact or support a claim unless it is rebutted or disproved by contrary evidence. It establishes a legally sufficient case at first appearance.
- Pro Bono (Publico): "For the public good."
 - Functional Description: This phrase functions to describe professional work undertaken voluntarily and without payment, particularly legal work for clients who cannot afford representation, reflecting the public service aspect of the legal profession (Rule 6.1 Voluntary Pro Bono Service).
- Pro Rata: "In proportion."
 - Functional Description: This phrase functions to describe a proportional calculation or distribution based on each party's share or interest.
- Pro Tempore (Pro Tem): "For the time being."

- Functional Description: This phrase functions to describe someone serving in a temporary capacity.
- Quantum Meruit: "As much as he/she deserved."
 - Functional Description: This functions as a remedy in restitution, allowing a party to recover the reasonable value of services rendered when there was no explicit contract, but a benefit was conferred and accepted under circumstances where payment was expected.
- Quantum Valebant: "As much as they were worth."
 - Functional Description: Similar to *quantum meruit*, this functions as a remedy in restitution, allowing recovery for the reasonable value of goods provided.
- Quasi: "As if" or "resembling."
 - Functional Description: This prefix functions to describe something that is not truly what it is called but has similar properties or functions (e.g., quasi-contract, quasi-judicial).
- Ratio Decidendi: "The reason for deciding."
 - Functional Description: This functions as the essential legal principle or rule upon which a court's decision is based. It is the binding part of a judicial opinion (Stare Decisis).
- Reddendo Singula Singulis: "Referring each to each."
 - Functional Description: This is a rule of Interpretation & Construction that functions to interpret a sentence where a list of subjects is followed by a list of objects or actions by applying each object/action to the corresponding subject in order.
- Res Gestae: "Things done."
 - Functional Description: This doctrine functions in evidence law to allow the admission of spontaneous statements made during or immediately after an event, as they are considered part of the event itself and therefore likely reliable.
- Res Ipsa Loquitur: "The thing speaks for itself."
 - Functional Description: This functions as a doctrine in negligence law allowing negligence to be inferred when an accident occurs that would not ordinarily happen without negligence, and the instrumentality causing the harm was under the defendant's exclusive control.
- Res Judicata: "A matter decided."
 - Functional Description: This principle functions to bring finality to legal disputes. Once a court has made a final judgment on the merits of a case, the same parties generally cannot relitigate the same claims or issues in a new lawsuit.
- Sine Die: "Without a day."

- Functional Description: This phrase functions to describe the adjournment of a meeting or court session indefinitely, without setting a date for it to resume.
- Sine Qua Non: "Without which not."
 - Functional Description: This phrase functions to describe an essential condition or element; something that is indispensable and without which a certain result cannot occur.
- Stare Decisis: "To stand by things decided."
 - Functional Description: This is the cornerstone of common law systems. It functions as a rule of precedent, requiring courts to follow the legal principles established in prior decisions of higher courts in similar cases. This promotes predictability, consistency, and fairness in the application of the law.
- Status Quo: "The existing state of affairs."
 - Functional Description: This phrase functions to describe the current or existing condition or state of things, often used in court orders (like injunctions) to maintain the present situation.
- Sub Judice: "Under judgment."
 - Functional Description: This term functions to describe a case or matter that is currently being considered by a court and has not yet been decided.
- Subpoena: "Under penalty."
 - Functional Description: This functions as a writ or court order commanding a person to appear in court or at a deposition, or to produce documents or other evidence, under penalty for failure to comply.
- Sui Generis: "Of its own kind."
 - Functional Description: This term functions to describe something that is unique or in a class of its own, not easily categorized with other things.
- Sui Juris: "Of one's own right."
 - Functional Description: This term functions to describe a person who has full legal capacity to manage their own affairs, as opposed to someone under a legal disability (like a minor or someone found incompetent).
- Terra Nullius: "Nobody's land."
 - Functional Description: This term functions in international law to describe territory that is considered legally to belong to no one, often relevant historically to claims of sovereignty over new lands.
- Uberrima Fides: "Utmost good faith."
 - Functional Description: This maxim functions to impose a higher standard of honesty and disclosure in certain types of relationships or contracts (like insurance). It requires parties to act with complete honesty and disclose all material facts, even if not asked, due to the nature of the trust involved.
- Ultra Vires: "Beyond the powers."

- Functional Description: This term functions to describe actions taken by an individual or entity (like a corporation or government body) that exceed the scope of their legal authority and are therefore invalid.
- Unjust Enrichment: (While English, the principle is often associated with Latin legal concepts of restitution).
 - Functional Description: This principle functions to prevent one party from unfairly benefiting at the expense of another, even in the absence of a contract or traditional wrong. It provides a basis for the remedy of restitution.
- Uti Possidetis: "As you possess."
 - Functional Description: This principle functions in international law to determine that territory and other property remain with the current possessor at the end of a conflict, preserving the status quo of possession.
- Vice Versa: "The other way around."
 - Functional Description: This phrase functions as a linguistic tool to indicate that the reverse of what has been stated is also true.
- Vis Major: "Superior force."
 - Functional Description: This term functions to describe an irresistible natural event (like a major flood or earthquake) that prevents the performance of a contract or excuses liability, often synonymous with an Act of God.
- Voir Dire: (Old French, but commonly used in English legal contexts) "To speak the truth."
 - Functional Description: This functions as the process of questioning prospective jurors or witnesses to determine their suitability or competence to serve in a case.
- Volenti Non Fit Injuria: "To a willing person, injury is not done."
 - Functional Description: This functions as a defense in tort law. It asserts that if a person knowingly and voluntarily exposes themselves to a risk of harm, they cannot later sue for injuries resulting from that risk.

In summary, legal maxims are more than just historical phrases; they are functional tools that encapsulate fundamental legal principles, guide interpretation, promote consistency, and contribute to the overall structure and fairness of the legal system. They provide a concise language for expressing complex legal ideas and are integral to legal reasoning and discourse.